

SENATE BILL 2366

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 63,
relative to health care.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-6-207(g), is amended by deleting the subsection and substituting:

(g)

(1) Barring any disqualifications determined by the board, the board shall issue a provisional foreign training license of two (2) years, which may be extended for an additional one (1) year, to an internationally trained physician who has successfully completed the examination as described in subsection (b) upon finding sufficient evidence that the internationally trained physician:

(A) Possesses:

(i) A certificate or diploma from a medical school that:

(a) Meets the board's standards for an approved international medical school; or

(b) Is judged to be acceptable by the board; and

(ii) A copy of a permanent ECFMG certificate;

(B) Completed a postgraduate training program of a minimum of three (3) years in a country approved by the internationally trained physician's training country or has completed a one-year postgraduate training program in the United States;

(C) Has been in good standing with the medical licensing or regulatory institution of the internationally trained physician's country of

training within the last five (5) years and does not have any pending disciplinary actions;

(D)

(i) Has proof of United States citizenship or being lawfully present in the United States, pursuant to § 4-58-103; or

(ii) Has applied to live or work in the United States;

(E) Has sufficient evidence of good moral character; and

(F) Has paid a non-refundable application fee of three hundred dollars (\$300).

(2) An applicant under subdivision (g)(1) shall submit sufficient evidence that the applicant is an internationally trained physician and has an offer for employment as a physician at an employer identified in subdivision (g)(3) that operates in this state.

(3)

(A) The board is authorized to identify the type of employer and clinical facilities authorized to employ and provide a supervising physician to supervise and assess the skills and competency of an internationally trained physician during the internationally trained physician's provisional foreign training license period and establish criteria and guidelines for such type of employers and authorized clinical facilities.

(B) The type of employer must include:

(i) A federally qualified health center, as defined in § 63-6-204, with an onsite supervising physician;

(ii) A rural health clinic, as defined in § 63-6-204, with an onsite supervising physician;

(iii) A community health center, as defined in Pub. L. No. 110-355, § 2(b)(A), with an onsite supervising physician;

(iv) An employer with a postgraduate training program accredited by the accreditation council for graduate medical education; and

(v) A supervising physician employer approved by the board upon consideration of the practice and training opportunities, including clinic and hospital experience.

(C) The board shall define additional types of employers based on factors, including:

(i) Experience in medical education and assessment;

(ii) The ability to provide a supervising physician to oversee and assess skills; and

(iii) Training resources, including clinic and hospital experience.

(4) An internationally trained physician who is granted a provisional foreign training license under subdivision (g)(1) shall only provide medical services at an employer identified in subdivision (g)(3) during the period of the provisional foreign training license unless the licensee notifies the board of a change of eligible employer.

(5) Barring any disqualifications determined by the board, the board shall grant a full and unrestricted license to practice medicine to an internationally trained physician under subdivision (g)(1) who is in good standing, demonstrates competency, has passed Steps 1, 2, and 3 of the USMLE, and has actively

practiced medicine in this state for two (2) years in a satisfactory manner after being granted a provisional foreign training license.

(6) The board is encouraged to collect and share data on the provisional foreign training license pathway to evaluate the pathway's effectiveness.

(7) As used in this subsection (g):

(A) "Employer" means an entity, corporation, or organization, whether for-profit or nonprofit, that furnishes, bills, or is paid for a healthcare procedure or service delivered in the normal course of business; and

(B) "Supervising physician" means a board-certified, qualified physician who holds an active medical license under this chapter 6 or chapter 9 of this title and practices medicine or osteopathic medicine in the same specialty as the internationally trained physician under supervision.

SECTION 2. Tennessee Code Annotated, Section 63-6-207(h)(2), is amended by deleting "Subdivision (g)(3)" and substituting "Subdivision (g)(4)".

SECTION 3. The board of medical examiners is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 4. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 31, 2027, the public welfare requiring it.